

signatory state who suffers a rights violation, or the government of another signatory state, can take the offending state to the ECtHR.

The Convention rights

Inspired in part by the 1948 UN Declaration of Human Rights, Articles 2–13 of Europe’s 1950 Convention list 12 substantive human rights that every individual is entitled to expect from their government (see below). Each set of rights is often referred to by its Convention article; for example, the prohibition of slavery is called “Article 4 rights.” Other articles cover procedural mechanisms, such as derogations and permitted restrictions in the application of Convention rights.

In 1959, when the ECtHR was set up, signatory nations could choose whether or not to accept the Court’s jurisdiction. Over the years,

however, the original Convention has been repeatedly updated. Some amendments, known as Protocols, concern procedure—for example, in 1998, Protocol No. 11 required all ECHR signatory states to allow cases to go to the ECtHR. Other protocols added new rights, such as the rights to property and education, laid down in Protocol in 1954.

Interpreting rights

Some rights are absolute under the Convention. Article 3 rights, which prohibit torture, cannot be limited by governments or be suspended in an emergency. In 2006, the ECtHR blocked the Italian government from deporting Nassim Saadi on grounds of his suspected ties to terrorist groups, because he was held to be at risk of torture in Tunisia.

Other articles qualify some rights. In the 1950s, most nations still retained the death penalty for

Key rights in the 1950 Convention	
Article 2:	The right to life
Article 3:	Freedom from torture and degrading treatment
Article 4:	Freedom from slavery and forced labor
Article 5:	The right to liberty and security of person
Article 6:	The right to a fair trial
Article 7:	The right to no punishment outside the law
Article 8:	The right to privacy and family life
Article 9:	Freedom of thought and religion
Article 10:	Freedom of expression, conscience, and opinion
Article 11:	The right to peaceful assembly and to join trade unions
Article 12:	The right to marry
Article 13:	The right to effective remedy to rights violations

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The European Court of Human Rights ... exerts a profound influence on the laws and social realities of its member states.

Dame Rosalyn Higgins
British president, International Court of Justice (2006–2009)

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murder. So Article 2 allowed a person to be intentionally killed by “sentence of a court following his conviction of a crime for which this penalty is provided by law.” In 1983, however, the death penalty was abolished by Protocol.

The right to life often sparked a debate about whether there should be a right to die, with terminally ill people being offered assisted suicide. Recognizing that cultures and practices vary across Europe, the ECtHR has been careful to say that such questions are best dealt with by national courts.

The second paragraph of Article 10 (freedom of expression, conscience, and opinion) sets out where a government may limit the right to free speech. The ECtHR’s task is to assess whether any government limitations are justified. In 1997, Swiss journalist Martin Stoll had published correspondence from confidential Swiss–US negotiations on the reparations to Holocaust victims from banks used by Nazis in World War II. The Swiss authorities convicted and fined Stoll. In 2007,